

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, MAY 22, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JPMORGAN CHASE BANK, N.A. vs. ACACIA TINSLEY
Case No. CL25-02105**

Defendant's Motion to be Relieved as Counsel

TENTATIVE RULING

Attorney Dustin Young's unopposed Motion to Relieved as Counsel for Defendant, Acacia Tinsley is GRANTED, effective upon date of service of the Order.

**EDWARD MCKENNA vs. C/O C. AGUIAR; ET AL.
Case No. CU24-08105**

Demurrer to First Amended Complaint

TENTATIVE RULING

Defendants C. AGUIAR, S. ARNOLD, M. GLAUDE, J. HEATH, J. RATA, J. SWEETEN, A. TARRANT, and M. TROTH demur to Plaintiff EDWARD PHILLIP MCKENNA'S first amended complaint alleging causes of action for assault, battery, and fraud. Summarized, Plaintiff alleges that Defendants, correctional officers at California Medical Facility, beat him on May 28, 2022 and in June 2022 generated fraudulent reports concerning the incident.

The court has not received opposition to the demurrer.

Government Code section 945.6 states that a suit against a public entity on a cause of action for which government claim presentation is required must be commenced within six months of written notice of the claims presentation board's action on the claim or within two years of the accrual of the cause of action if no written notice is given. Government Code section 950.2 provides that an action against a public employee for injury occurring from acts or omissions in the scope of his employment is barred if an action against the employing entity would be barred, meaning that section 945.6's limitations apply to Plaintiff's claims (for injury from acts of public employees) against Defendants (the public employees).

The court takes judicial notice of Defendants' proffered materials, comprising the record of Plaintiff's government claim form submitted July 24, 2022, under Evidence Code section 452, subdivision (c) as records of the state executive. The record of Plaintiff's government claim form shows a facial time bar for Plaintiff's complaint. Plaintiff's statute of limitations for this action, where he did not receive written notice from the claims board regarding his claim, ran on May 28, 2024. However, Plaintiff's original complaint in this action was filed on October 8, 2024.

Defendants' unopposed demurrer is sustained without leave to amend.

ANTONIO CONTRERAS MORA vs. CITY OF FAIRFIELD; ET AL
Case No. CU24-08766
(CONSOLIDATED WITH)
PONCE-NUÑEZ vs. CITY OF FAIRFIELD; ET AL.
Case No. CU24-08768

Demurrer by Defendant STATE OF CALIFORNIA (CALTRANS) to Plaintiffs' Second Amended Complaint

TENTATIVE RULING

Liability against a public entity such as CALTRANS must be based on statute, not common law. Government Code §815(a); Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.

Government Code §830(a) defines "dangerous condition" as "a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property is used with due care in a manner in which it is reasonably foreseeable that it will be used."

Government Code §835 confirms that a public entity can be held liable for a dangerous condition of public property caused by a negligent act or omission of an employee of that public entity.

There must be a physical deficiency in the property that proximately caused the injury, even if a third party's negligence also contributed to its occurrence. Cerna v. City of Oakland (2008) 161 Cal.App.4th 1340, 1347-1348.

Government Code §835.4(a) excuses a public entity from liability for a dangerous condition of public property if the act or omission that created the dangerous condition was reasonable. See also Van Kempen v. Hayward Area Park & Recreation District (1972) 23 Cal.App.3d 822 [actions of park employees found reasonable to negate possibility of liability under dangerous condition of public property cause of action].

Government Code §840.2 also makes liable the public employee whose actions proximately caused the dangerous condition if that risk was reasonably foreseeable, and the employee had the authority and funds and other means immediately available to take alternative action which would not have created the dangerous condition.

The dangerous condition of public property basis for liability and defenses thereto cannot be subverted by a plaintiff pleading a negligence cause of action.

In structuring Government Code section 835 to define the circumstances in which a public entity properly may be held liable for an injury caused by a dangerous condition of public property, the Legislature took into account the special policy considerations affecting public entities in their development and control of public property and made a variety of policy judgments as to when a public entity should or should not be liable in monetary damages for injuries that may occur on public property. These policy judgments would be undermined if an injured person could ignore the limitations embodied in Government Code section 835 and invoke the very general provisions of section 1714 of the Civil Code to impose liability on a public entity in circumstances in which such liability would not be permitted under section 835. Accordingly, we conclude that in determining the public entities' direct liability, we must evaluate plaintiffs' claim under the provisions of Government Code section 835 alone. Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1132.

The court therefore sustains without leave to amend CALTRANS' demurrer to the 2nd cause of action for (general) negligence asserted in the second amended complaint.

Per CRC 3.1320(j)(1), CALTRANS answer to the remaining 1st cause of action alleged against it by the second amended complaint in these consolidated actions is due within 10 days.

SYDNEY NACHOR; ET AL. vs. JEFFCO PAINTING & COATING, INC.; ET AL.
Case No. CU25-04265

JEFFCO PAINTING & COATING, INC.'s Demurrer

TENTATIVE RULING

Defendant JEFFCO PAINTING & COATING, INC. ("JEFFCO") demurs to Plaintiffs SYDNEY NACHOR and TRACY NACHOR's first amended complaint in case CU25-04265 and Plaintiff RAYMUNDO CAMARENA's first amended complaint in case CU25-05331. The two complaints are essentially identical; both allege that Defendant RAYMUNDO DANIEL CAMARENA (a distinct person from Plaintiff RAYMUNDO CAMARENA) negligently caused Plaintiffs injury by driving a vehicle off the road while intoxicated. SYDNEY NACHOR and RAYMUNDO CAMARENA were passengers in the vehicle and directly injured; TRACY NACHOR is SYDNEY NACHOR's wife and alleges loss of consortium (her added cause of action being the sole significant difference between the two first amended complaints). Plaintiffs allege that JEFFCO negligently entrusted the vehicle to RAYMUNDO DANIEL CAMARENA.

Notice of Tentative Ruling. JEFFCO's notices of demurrer do not advise the recipients that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). JEFFCO is cautioned to observe local rules going forward.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Sham Pleading Doctrine. Under the sham pleading doctrine, plaintiffs are forbidden to amend complaints to omit harmful allegations from previous complaints or add allegations inconsistent with those of earlier complaints, unless a satisfactory explanation for the changes is made. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425 (*Deveny*).) If a party attempts to avoid the defects of an earlier complaint by filing an amended complaint with such unexplained omissions or additions the court may take judicial notice of the earlier pleading and disregard inconsistent allegations. (*Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 147, 151.)

The CU25-04265 1AC and CU25-05331 1AC alike reverse allegations from their original versions that indicate that the incident occurred while they and RAYMUNDO DANIEL CAMARENA was in the course and scope of employment with JEFFCO, which raised a question of worker's compensation exclusivity. Plaintiffs have not supported admissible evidence explaining the change in allegations, instead only offering an explanation in opposition to demurrer. (See *Deveny, supra*, 139 Cal.App.4th at pp. 425-426 [evidence applied to satisfactorily rebut sham accusation].) On the current state of the evidence before the court the sham pleading doctrine applies to invalidate the first amended complaints in both cases.

Worker's Compensation Exclusivity. As a general rule, an employee who suffers an industrial injury arising out of and in the course of employment is limited to recovery under the worker's compensation system. (*Torres v. Parkhouse Tire Service, Inc.* (2001) 26 Cal.4th 995, 1001.) The worker's compensation system exists as a "presumed compensation bargain" whereby employers assume liability without fault in exchange for limits on the extent of that liability and employees enjoy swift compensation that requires no proof of fault in exchange for giving up the potentially wide range of damages in tort. (*Ibid.*) Where worker's compensation applies as a remedy civil courts have no jurisdiction. (*Rowland v. County of Sonoma* (1990) 220 Cal.App.3d 331, 333 (*Rowland*).) Generally, a defendant must raise exclusivity as an affirmative defense or waive the protection of the statute. (*Doney, supra*, 23 Cal.3d at p. 98-99.) However, exceptions to this rule (which, in my opinion, near swallow the rule) exist where the allegations of a complaint directly or indirectly state facts indicating an employment relationship and do not state additional facts negating exclusivity or where post-pleading motions indicate that conditions of employment might exist. (*Rowland* at p. 335 [exceptions to rule]; *Iverson v. Atlas Pacific Engineering* (1983) 143 Cal.App.3d 219, 224 [additional facts can negate application].) When such a situation arises the trial court's jurisdiction is limited to determining the jurisdictional issue. (*Rowland* at p. 335.)

Putting aside the sham pleading issue for the moment, the court finds that the CU25-04265 and CU25-05331 first amended complaints do not show worker's compensation exclusivity bars on their faces. The complaints particularly allege that the incident specifically occurred outside of the course and scope of Plaintiffs' employment. (CU25-04265 1AC at ¶ 21; CU25-05331 1AC at ¶ 21.) The complaints do not allege inconsistent facts defeating the allegation that the incident occurred outside of the course and scope of employment.

Negligent Entrustment. The elements of negligent entrustment are that (1) a vehicle driver was negligent, (2) the defendant owned the vehicle in question, (3) the defendant knew or should have known that the driver was unfit to operate the vehicle, (4) the defendant permitted the driver to operate the vehicle, and (5) the driver's unfitness was a substantial factor in causing harm to the plaintiff. (*Jeld-Wen Inc. v. Superior Court* (2005) 131 Cal.App.4th 853, 863-864 [citing CACI No. 724].) Neither first amended complaint contains allegations of JEFFCO's actual or constructive knowledge of

RAYMUNDO DANIEL CAMARENA's unfitness to operate the vehicle JEFFCO entrusted to him.

Vehicle Code Section 17150. Vehicle Code section 17150 imposes liability on any motor vehicle owner for injury caused by a person using the vehicle with the owner's express or implied permission. The first amended complaints do not presently state causes of action pursuant to section 17150. Though the first amended complaints contain boilerplate allegations that JEFFCO permitted RAYMUNDO DANIEL CAMARENA to use its vehicle their stated causes of action are for negligence, not statutory liability. Negligent entrustment and section 17150 liability are distinct causes of action. (*McKenna v. Beesley* (2021) 67 Cal.App.5th 552, 563 at fn. 14.)

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) The court finds that Plaintiffs have demonstrated a reasonable possibility that amendment could cure identified defects in both first amended complaints.

Conclusion. JEFFCO's demurrers are sustained with leave to amend. Plaintiffs are to file amended pleadings, if any, within thirty days of the date of this order.

PAUL M. BERSON vs. FCA US LLC; ET AL.
Case No. CU25-05938

- 1). Demurrer by Defendant FCA US LLC to 6th Cause of Action in Plaintiff's Complaint (Fraudulent Inducement); and
- 2). Motion by Defendant FCA US LLC to Strike Punitive Damage Allegations

TENTATIVE RULING

The demurrer filed to challenge the 6th cause of action for fraudulent inducement—concealment is sustained, with leave to amend, on some, but not all, of the grounds raised by the demurring defendant, FCA US, LLC ("FCA").

The court finds no merit in FCA's argument of an insufficient transactional relationship between a new vehicle manufacturer and a consumer who purchases the new vehicle from a dealership to support a duty to disclose, nor the economic loss rule argument.

There is one citable California case on the issue of whether a vehicle manufacturer can be subject to a fraudulent inducement—concealment cause of action, and it clearly holds in favor of such liability, and against the application of the economic loss rule to this situation. Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828.

As to the insufficient transactional relationship argument, it also has been expressly rejected by Dhital. While a new vehicle manufacturer may not be a party to the purchase agreement between purchaser and dealer, it is well understood that the manufacturer and purchaser have a transactional relationship distinct from the terms of the purchase agreement. Davis v. Nissan North America, Inc. (2024) 100 Cal.App.5th 825, 837 [“Under California law, manufacturer warranties that accompany the sale of a vehicle without regard to the substantive terms of the sales contract between the buyer and the dealer are independent of the sales contract”].

It is also well understood that almost all new vehicle manufacturers sell to individual consumers exclusively through authorized dealers. Thus, the court finds that the absence of a specific allegation in the complaint confirming vehicle purchase occurred through an authorized dealer is of no real consequence (although better form would be to include such an allegation).

Finally, although FCA argued that Plaintiff failed to allege the reliance element, the court finds otherwise.

Plaintiff’s Complaint includes the allegation that “had Plaintiff known of the Engine Defect”, “Plaintiff would not have purchased the Subject Vehicle, or would have paid less for it” [¶24; see also 69 and 70].

Other arguments raised by FCA support the sustaining of its demurrer to the 6th cause of action for fraudulent inducement/concealment, albeit with leave to amend.

C.C.P. §338(d) sets a three-year limitations period on a fraud claim, but “The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud”

A plaintiff who files a complaint more than three years after the alleged fraud took place has the burden of pleading when and how the fraud was discovered, and why he or she could not with reasonable diligence discovered it earlier. Czajkowski v. Haskell & White, LLP (2012) 208 Cal.App.4th 166, 174-175.

See also Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412, 437 [“if an action is brought more than three years after commission of the fraud, plaintiff has the burden of pleading and proving that he did not make the discovery until within three years prior to the filing of the complaint”].

That burden of pleading the when and how of discovery applies not only to fraud, but also to fraudulent concealment. Community Cause v. Boatwright (1981) 124 Cal.App.3d 888, 900.

Generally, the time of discovery is determined as the time when the plaintiff suspects or should suspect that someone has done something wrong to cause the injury. Kleefeld v. Superior Court (1994) 25 Cal.App.4th 1680, 1683-1684.

A plaintiff may not have any duty to investigate until he or she has suffered an injury, and has reason to suspect the factual basis for a claim. Shively v. Bozanich (2003) 31 Cal.4th 1230, 1247-1248.

Plaintiff's complaint alleged only that he discovered the fraudulent inducement-concealment "shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful attempts to repair them" [Complaint, ¶38]. But the complaint did not allege when the repairs were attempted, or any other time landmarks which would conclusively set the filing of the complaint within three years of discovery.

In addition, Plaintiff's complaint does not allege what defects manifested in his specific vehicle, necessary to specifically allege the sustaining of damage element of fraudulent inducement--concealment. Bjoin v. J-M Manufacturing Co., Inc. (2025) 113 Cal.App.5th 884, 901.

Plaintiff's Complaint alleged "engine defects, transmission defects electrical defects; among other defects and non-conformities" [¶12]; and that the type of engine (5.7L engine) used in 2019 Ram 1500 vehicles has "one or more defects that can result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine" [¶16]. The Complaint included allegations that the engine defect "can suddenly affect the driver's ability to control the vehicle or cause a non-collision vehicle fire" and "can cause the vehicle to fail without warning, while the Vehicle is moving at highway speeds [¶17]. And it included allegations that FCA "was inundated with complaints regarding the Engine Defect but rather than repair the problem under warranty, FCA dealers either inform consumers that their vehicles are functioning properly or conduct repairs that merely mask the defect" [¶26].

What is missing from Plaintiff's complaint are any specific allegations of what issues he experienced with his vehicle, as opposed to problems other drivers have reported as to their vehicles. All it alleges as to Plaintiff and his vehicle is that "Defects and nonconformities to warranty manifested themselves within the warranty period, including but not limited to, engine defects, transmission defects, electrical defects; among other defects and nonconformities" [Complaint, ¶12].

Thus, the court sustains FCA's demurrer to this cause of action, with 30 days leave for Plaintiff to file a first amended complaint which addresses these deficiencies.

The court also sustains with leave to amend FCA's demurrer to the 4th cause of action for breach of implied warranty, for similar reasons. Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1305-1306 [applicable limitations period for breach of implied warranty cause of action is four years, per Commercial Code §2725];

Commercial Code §2725(3) and (4) [discovery and/or tolling can apply to extend this period]; Jamil v. Mercedes-Benz USA, LLC (C.D.Cal. 2025) 780 F.Supp.3d 957, 967 [allegations of the defects, when the defects were or should have been discovered, and efforts made by conceal to existence of non-remediable defects are needed to support equitable tolling of this limitations period].

Additionally, the court grants with leave to amend FCA's motion to strike the punitive damage allegations in the complaint.

A plaintiff must allege facts sufficient to constitute oppression, fraud or malice to justify a claim for punitive damages. Civil Code §3294(a).

To recover punitive damages against a corporation, a plaintiff must show authorization or ratification by a corporate officer, director or managing agent. Civil Code §3294(b).

With the court sustaining FCA's demurrer to the 6th cause of action for fraudulent inducement/concealment, no fraud allegations remain to support the claim for punitive damages.

The complaint also failed to include any allegations of authorization or ratification by a corporate officer, director or managing agent.

The court understands that at this early stage of litigation, a lemon law plaintiff may not be able to identify the name(s) or title(s) of any corporate officer(s), director(s) or managing agent(s). Tenet Healthsystem Desert, Inc. v. Blue Cross of California (2016) 245 Cal.App.4th 821, 838 ["less particularity is required when the facts lie more in the knowledge of the opposite party"]. Still, the complaint must allege, at least in general terms, the authorization or ratification of the wrongful conduct was made by a corporate officer, director or managing agent. Such allegations do not appear anywhere within Plaintiff's complaint.

The granting of this part of FCA's motion to strike is with leave to amend.

A lemon law plaintiff may be forced at a later time in the case, such as before entry of judgment, to elect between the remedies of civil penalties and punitive damages. Troensegaard v. Silvercrest Indus. (1985) 175 Cal.App.3d 218 [mobile home purchaser alleged formaldehyde was present in the home beyond recommended levels; jury award of both civil penalties and punitive damages was revised, to strike the punitive damage recovery even though both had been adequately proven].

This election of remedies is not required to be made at the pleading stage.

The court denies FCA's motion to strike insofar as FCA sought to strike paragraph 67 of the complaint, and its allegations about defects allegedly reported to FCA or its agents earlier by owners of other vehicles with the same type of engine as the one in Plaintiff's vehicle. The court is not yet convinced that such allegations are irrelevant, misleading, or improper.

For the matters for which this ruling allows leave to amend, Plaintiff has 30 days leave to file and serve a first amended complaint.

Regardless of whether oral argument is requested on this tentative ruling, the parties are to appear for hearing. The court wants an update from the parties as to their compliance with the mandatory deadlines set by C.C.P. §871.26, including early meaningful mediation within 150 days of the filing of a responsive pleading (i.e., the demurrer and motion to strike). The filing of somewhat vague pleadings, and inclusion in demurrer of arguments clearly precluded under existing law, does not fill this court with confidence that the parties are taking their duties under C.C.P. §871.26 seriously and have complied by the deadlines mandated by that statute.

**DAVID LOPEZ; ET AL. vs. AMERICAN HONDA MOTOR CO., INC.
Case No. CU25-09816**

Defendant AMERICAN HONDA MOTOR CO., INC.'s Motion to Deem Matters Admitted and Request for Monetary Sanctions

TENTATIVE RULING

The Court on its own motion continues the hearing on Defendant American Honda Motor Co., Inc.'s Motion to Deem Facts Admitted and Request for Monetary Sanctions as to Plaintiff David Lopez and Defendant American Honda Motor Co., Inc.'s Motion to Deem Facts Admitted and Request for Monetary Sanctions as to Plaintiff Antonio Lopez to May 28, 2026 at 9:00 a.m. in Department 7.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

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